



United States
Attorney's Office
Middle District of Florida



Ambulance Company And Its Owners Agree To Pay \$900,000 To Settle False Claims Act Allegations Of Medically Unnecessary Ambulance Services

Tuesday, July 1, 2025

For Immediate Release

U.S. Attorney's Office, Middle District of Florida

Tampa, FL – United States Attorney Gregory W. Kehoe announces that Courtesy Transport Services, LLC ("Courtesy") and its owners, Melanie Burger and Dr. John Milanick, have agreed to collectively pay \$900,000 to resolve allegations that they defrauded Medicare and Medicaid by billing for ambulance transportation services that were not medically necessary or not actually provided. The settlement amounts for Courtesy and Melanie Burger are based on their ability to pay.

According to the settlement agreements, from June 1, 2013, through June 30, 2019, Courtesy submitted claims to Medicare and Medicaid for basic life support, non-emergency ambulance transport services which the United States contends were not reimbursable, because the services were not medically reasonable and necessary, the patients did not require transportation by ambulance, or the services were not actually provided to patients. As such, these services were not reimbursable by Medicare and Medicaid.

“False and fraudulent claims for ambulance services harm both the integrity of important federal healthcare programs as well as the seniors who rely on them,” said U.S. Attorney Gregory W. Kehoe. “Our office is committed to recovering taxpayers’ money from fraud and abuse of these programs and will hold those who submit false claims accountable.”

“When health care providers bill Medicare for medically unnecessary services, they not only misuse critical resources meant to care for beneficiaries, but also increase the financial burden on taxpayers,” said Acting Special Agent in Charge Rolando Alvarez of the Department of Health and Human Services Office of Inspector General (HHS-OIG). “Together with our law enforcement partners, we remain committed to uncovering and investigating fraudulent health care schemes to preserve the integrity of federal health care programs.”

These settlements resolve a lawsuit originally filed by Jonathon Whitmore, a former Courtesy employee, under the *qui tam*, or whistleblower, provisions of the False Claims Act that permit private individuals to sue on behalf of the government for false claims, and to share in any recovery. Mr. Whitmore will receive roughly \$171,000 of the proceeds from the settlements with Courtesy and its owners. The False Claims Act case is captioned *United States and the State of Florida ex rel. Whitmore vs. Courtesy Transport, et al.*, Case No. 5:19-cv-241-Oc-34PRL.

These settlements resulted from a coordinated effort by the U.S. Attorney’s Office for the Middle District of Florida, Florida’s Office of the Attorney General Medicaid Fraud Control Unit (“MFCU”), and the HHS Office of the Inspector General. Assistant United States Attorney Carolyn Tapie and MFCU Deputy Director of Civil Enforcement Cedell Ian Garland handled the investigation. The claims resolved by the settlements are allegations only, and there has been no determination of liability.

Updated July 1, 2025

Topic

FALSE CLAIMS ACT

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